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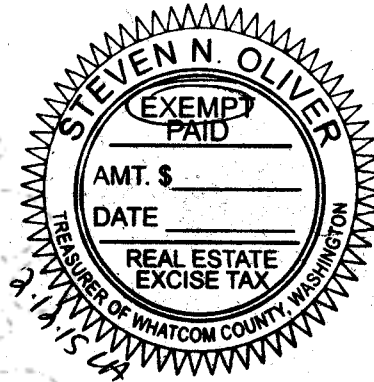
2/12/2015 3:55 PM

D/RC EASE \$151.00

Whatcom County, WA

Request of: SOUTH DOUGLAS LLC

After recording return to:  
SOUTH DOUGLAS LLC  
1442 SUNSET AVE  
FERNDAL, WA 98248



|                                                   |                                                              |
|---------------------------------------------------|--------------------------------------------------------------|
| DOCUMENT TITLE:                                   | MAINTENANCE COVENANT AND ACCESS EASEMENT                     |
| RELATED DOCUMENT NUMBER:                          | SOUTH DOUGLAS LONG PLAT DIVISION 3<br>af# <u>215020 1460</u> |
| GRANTOR:                                          | SOUTH DOUGLAS, LLC A Washington Limited<br>Liability Company |
| GRANTEE:                                          | CITY OF FERNDAL, a Washington municipal corporation          |
| ABBREVIATED LEGAL DESCRIPTION:                    | Tract A South Douglas Plat Div 2                             |
| ADD- LEGAL DESCRIPTION ON EXHIBIT "A" OF DOCUMENT |                                                              |
| ASSESSOR'S TAX PARCEL NUMBER:                     | 390230 021456 0000                                           |

### MAINTENANCE COVENANT AND ACCESS EASEMENT

THIS MAINTENANCE COVENANT AND ACCESS EASEMENT ("Agreement") is made  
This 6 day of FEBRUARY, 2015 between South Douglas PLACE  
LLC ("Developer"), and the CITY OF FERNDAL, a municipal corporation of the State of Washington  
("City").

### RECITALS

WHEREAS, Developer is the owner and developer of certain real property located in the City which property is legally described on Exhibit A attached hereto and incorporated by reference and which is commonly known as South Douglas Long Plat Division 3 ("Development").

WHEREAS, The City has approved construction plans submitted by Developer for the Development. The Development contains on-site stormwater facilities as described in the approved construction plans, which together with any other stormwater facilities that may hereafter be constructed on the Development are hereinafter referred to as the "Stormwater Facility."

WHEREAS, Ferndale Municipal Code ("FMC") 13.34.060 encourages Low Impact Development (LID) best management practices (BMPs) and requires a maintenance covenant

for each lot containing or served by bioretention facilities.

WHEREAS, the maintenance covenant shall identify requirements and liability for preservation and maintenance of low impact development facilities approved under FMC 13.34.060 and privately held in individual or undivided ownership or intended for public ownership, shall restrict conversion of LID facilities, and shall grant the City right-of-entry to allow inspection, and emergency maintenance and repair and which maintenance covenant shall be recorded against the Development.

WHEREAS, the City requires that Developer enter into this Agreement as a condition of the City's approval of construction plans and/or approval of the final plat, or issuance of a letter of completion in the case of a commercial project, for the Development.

**NOW, THEREFORE,** the City and Developer agree as follows:

**1. Developer.** The term "Developer" as used herein is intended to and does include the person or entity responsible for the Development to which this Agreement applies as well as the successors and assigns of such Developer, including without limitation, subsequent owners of lot(s) or interests) in the Development including any homeowners' or other association owning or having responsibility for maintenance of common areas in the Development, including ownership or maintenance of the Stormwater Facility.

**2. Covenant to Maintain and Repair.** Developer covenants, that it shall, at its sole expense, at all times maintain the Stormwater Facility (bioretention facility) in good working order, condition and repair, clear of all debris, and in compliance with all applicable state and local rules, regulations, and guidelines, including those adopted from time to time by the City. Maintenance shall be performed per "Exhibit C" which is attached hereto and incorporated by reference.

**3. Developer Designee.** No later than at the time of recording of the final plat or issuance of a letter of completion for a commercial project, Developer shall notify the City in writing of the person or persons responsible for compliance with Developer's obligations under this Agreement ("Developer Designee") and the Developer will notify the City in writing within 30 days of any future change in the Developer Designee. Developer expressly agrees that the Developer Designee shall have the authority to bind Developer, its successors and assigns with respect to the matters described in this Agreement.

**4. Items of Maintenance, Repair and Inspection; Maintenance and Inspection Schedule and Records,** Developer's inspection and maintenance of the Stormwater Facility will comply with FMC 13.34.140, as now constituted or as may be amended in the future which includes but is not limited to "removal of silt, litter and other debris from all catch basins, inlets and drainage pipes; grass cutting and vegetation removal; and necessary replacement of landscape vegetation. An inspection shall be conducted no less than annually, or as specified in the development's Stormwater Maintenance Manual, and "any identified maintenance found must be addressed in a timely manner as determined by the City...to ensure proper functioning of the Stormwater Facility." Developer shall provide the City's Public Works Stormwater Division with annual (or such other time frame determined by the City) records of installation and of all maintenance and

repairs and shall retain such records for 20 years, all as required by FMC 13.34.170.

**5. Easement.** Developer hereby grants to the City, its employees, independent contractors and designees, a nonexclusive easement for access, ingress and egress over, across, upon, through and under the Development from time to time at the City's sole discretion to inspect sample, and monitor components of the Stormwater Facility and discharges therefrom. Such non-exclusive easement includes the right to inspection by the City when the City has a reasonable basis to believe that a violation of FMC 13.34 is occurring or has occurred and to enter when necessary for correction of a violation of this chapter pursuant to FMC 13.34.180 through 13.34.210, inclusive, and pursuant to the enforcement procedures of FMC 8.08.120 through 8.08.140, inclusive, all as currently constituted or as may be amended in the future.

**6. Failure to Perform Covenant.** If the City determines that Developer is not in compliance with this Agreement, enforcement shall be by way of FMC 13.34.180 through 13.34.210 inclusive. In addition to, or as an alternative and not as an election of remedies, enforcement may be by way of an action for breach of the terms of the Agreement herein.

**7. City has No Obligation to Perform.** Developer, for itself and its successors and assigns, including all future owners of lots or interests in the Development, agrees that the City has no obligation to exercise or to perform any maintenance or repair of the Stormwater Facility, and that the City shall have no liability to Developer or to any of Developer's successors or assigns, including future owners of lots or interests in the Development, in connection with the maintenance or repair of the Stormwater Facility, or the failure to perform the same.

**8. Reimbursement.** If the City exercises its right to enter the Development to inspect the Stormwater Facility when the City has a reasonable basis to believe that a violation of FMC 13.34 is occurring or has occurred and when the City exercises its right to enter the Development when necessary for correction of a violation of FMC 13.34, Developer shall reimburse the City for all of its costs and expenses incurred in connection therewith within thirty (30) days after receipt of an invoice. Such costs and expenses shall be added to the daily penalty allowable for a civil infraction, if a civil infraction is issued.

**9. Indemnification.** Developer agrees to indemnify, defend and hold harmless the City, its employees, independent contractors and designees from and against any liability, losses, costs, expenses (including reasonable attorney fees), claims or suits arising from Developer's failure to perform its obligations under this Agreement or the exercise of the City's rights herein.

**10. Run with the Land.** The rights and obligations contained herein shall run with the land and inure to the benefit of, and shall be binding upon, the City and Developer and their respective successors and assigns including, without limitation, subsequent owners of lots or interests in the Development and including any homeowner's or other association owning and/or having responsibility for maintenance of the common areas in the Development, including maintenance of the Stormwater Facility.

**11. Failure of Association to Act: Creation of Lien and Personal Obligation.**  
The Developer covenants and agrees that the obligations contained herein to maintain the

Stormwater Facility belong jointly to such association having the responsibility for maintenance of the Stormwater Facility as well as to the individual lot or interest owners. Failure of such association to meet the obligations herein regarding the Stormwater Facility, does not relieve the individual lot or interest owners from such obligations. As such, any enforcement action by the City pursuant to this Agreement may be had against not only such association, but also against the individual lot or interest owners, as well. All applicable and allowable fees and costs herein as provided in the Ferndale Municipal Code, shall be a continuing lien upon each lot or interest against which such fees and costs are imposed or to which they apply, on a pro rata basis, and shall also be the personal obligation of each owner of such lot or interest at the time the fees and costs come due. The personal obligation for such fees and costs shall pass to the lot or interest owner's successor in title. No lot or interest owner may exempt himself/herself from liability for such fees and costs by abandoning or not using his/her lot or interest or otherwise.

**12. Attorney Fees.** If legal action is commenced in connection with this Agreement, the prevailing party in such action shall be entitled to recover its reasonable attorney fees and costs incurred in the trial court and in any appeal therefrom. The term "action" shall be deemed to include action commenced in the bankruptcy courts of the United States and any other court of general or limited jurisdiction.

**13. Assignment.** The obligations of Developer, and of subsequent owners of lots or interests in the Development, under this Agreement may not be assigned except (a) in connection with the sale of the property owned by such person (in which case the transferee will be deemed to assume such obligations), or (b) with the prior written consent of the City to a homeowners' or other association that owns and maintains the common areas of the Development, including the Stormwater Facility.

**14. Authority.** If Developer is an entity, the individual executing this Agreement on behalf of Developer represents and warrants to the City that he or she has the full power and authority to do so and that Developer has full right and authority to enter into this Agreement and perform its obligations under this Agreement.

**IN WITNESS WHEREOF,** Developer and the City have executed this Instrument on the date first written above.

DEVELOPER:  
SOUTH DOUGLAS LLC.

By: William Kramer  
Title: member

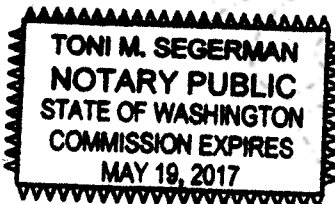
CITY OF FERNDAL, a Washington  
municipal corporation

By: [Signature]  
Title: City Administrator

STATE OF WASHINGTON )  
County of Whatcom ) ss

This is to certify that on the 10<sup>th</sup> day of February, 2015 before me, the undersigned Notary Public in and for the State of Washington, personally appeared Greg Young, to me known to be the City Administrator of the CITY OF FERNDALE, the municipal corporation that executed the foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said municipal corporation, for the uses and purposes therein mentioned, and on oath stated that he is authorized to execute said instrument on behalf of the CITY OF FERNDALE.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.



Toni M. Segerman  
Notary public in and for the State of Washington,  
residing at: Bellingham  
My commission expires: 5/19/17

STATE OF WASHINGTON )  
County of Whatcom ) ss

This is to certify that on the 6 day of FEBRUARY, 2015 before me, the undersigned Notary Public in and for the State of Washington, personally appeared WILLIAM KRAMER, to me known to be MEMBER, of South Douglas LLC, the entity that executed the foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that s/he is authorized to execute said instrument on behalf of the South Douglas LLC.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.



[Signature]  
Notary public in and for the State of Washington,  
residing at: LYNDEN  
My commission expires: JULY 27, 2018

**Exhibit A**

**Land Legal description:**

TRACT A, SOUTH DOUGLAS LONG PLAT, DIV. 2, ACCORDING TO THE PLAT THEREOF, RECORDED FEBRUARY 03, 2012, UNDER WHATCOM COUNTY AUDITOR'S FILE NO. 2120200446, RECORDS OF WHATCOM COUNTY, WASHINGTON, AND AS AMENDED UNDER WHATCOM COUNTY AUDITOR'S FILE NO. 2121003585.

SITUATE IN WHATCOM COUNTY, WASHINGTON

**"EXHIBIT B" LEGAL DESCRIPTION OF  
RAIN GARDEN EASEMENTS OVER PORTIONS OF THE FOLLOWING LOTS**

**Lot # 1**

The North 15.00 feet of the South 20.00 feet of the West 15.00 feet of the East 45.00 feet OF Lot 1 of South Douglas Long Plat Division 3

**Lot # 8**

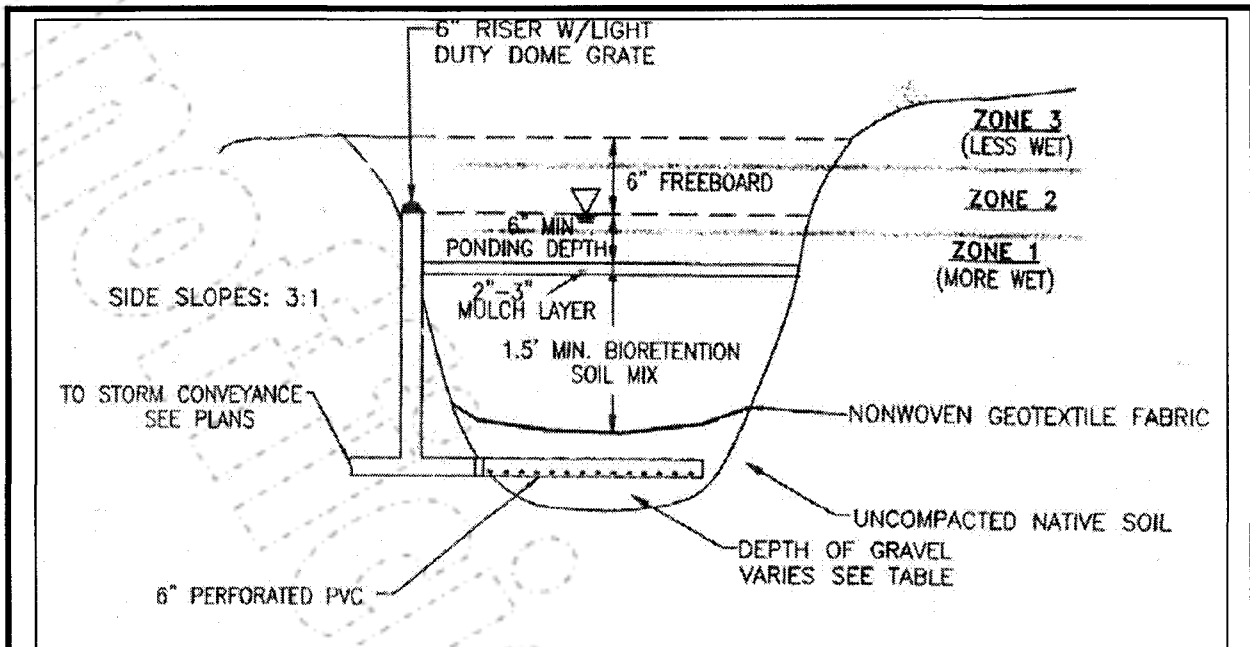
The North 15.00 feet of the South 20.00 feet of the West 15.00 feet of the East 45.00 feet OF Lot 8 of South Douglas Long Plat Division 3

**Lot # 9**

The North 15.00 feet of the South 20.00 feet of the West 15.00 feet of the East 45.00 feet OF Lot 9 of South Douglas Long Plat Division 3

**Lot # 10**

The North 15.00 feet of the South 20.00 feet of the West 15.00 feet of the East 45.00 feet OF Lot 10 of South Douglas Long Plat Division 3



#### RAIN GARDEN/BIORETENTION DETAIL (NTS)

TO BE INSPECTED AND APPROVED BY ENGINEER OF RECORD PRIOR TO OCCUPANCY. SUBMIT LETTER OF APPROVAL TO THE BUILDING INSPECTOR

#### BIO-RETENTION SOIL MIX

- DESIGN INFILTRATION RATE: 2 INCHES PER HOUR
- 65% TO 70% GRAVELLY SAND AND 30% TO 35% COMPOST (SEE SPECIFICATION BELOW)
- GRAVELLY SAND GRADATION PER ASTM D 422
 

| SIEVE SIZE | PERCENT PASSING |
|------------|-----------------|
| 2-INCH     | 100             |
| 3/4-INCH   | 70-100          |
| 1/4-INCH   | 50-80           |
| US No. 40  | 15-40           |
| US No. 200 | 0-3             |
- THE SOIL MIXTURE SHOULD BE UNIFORM, FREE OF STONES, STUMPS, ROOTS OR OTHER SIMILAR OBJECTS LARGER THAN 2 INCHES.
- ON-SITE SOIL MIXING OR PLACEMENT NOT ALLOWED IF SOIL IS SATURATED OR SUBJECT TO WATER WITHIN 48 HOURS
- COVER AND STORE SOIL ACCORDINGLY TO PREVENT WETTING OR SATURATION.
- TEST SOIL FOR FERTILITY AND MICRONUTRIENTS AND, IF NECESSARY, AMEND MIXTURE TO CREATE OPTIMUM CONDITIONS FOR PLANT ESTABLISHMENT AND EARLY GROWTH AT RATES RECOMMENDED BY AN INDEPENDENT LABORATORY SOIL TEST.
- PLACE SOIL IN LIFTS NOT EXCEEDING 6 INCHES

#### RAIN GARDEN

##### LOT 1:

INFILTRATION RATE= 0.50 IN/HR  
RG SIZE= 225SF; GRAVEL DEPTH= 2'  
RISER ELEV.= 51.67

##### LOT 8-9:

INFILTRATION RATE= N/A  
RG SIZE= 225SF; GRAVEL DEPTH= 2'  
RISER ELEV.= 57.62 (LOT 8)  
RISER ELEV.= 59.60 (LOT 9)

##### LOT 10:

INFILTRATION RATE= 0.50 IN/HR  
RG SIZE= 225SF; GRAVEL DEPTH= 2'  
RISER ELEV.= 62.00

## LAND DEVELOPMENT ENGINEERING & SURVEYING INC.

5160 INDUSTRIAL PL. SUITE 108  
FERNDAL, WA 98248  
Ph (360) 383-0620

#### EXHIBIT C

|             |          |        |
|-------------|----------|--------|
| DRAWN BY:   | DATE:    | JOB#:  |
| SR          | 01/28/15 | 13011  |
| CHECKED BY: | SCALE:   | SHEET: |
|             | NTS      | 1 OF 1 |